



Notification Waiver Determination

Freedom Fuels – Rennic

Acquisition	Freedom Fuels Australia Pty Ltd (Freedom Fuels) applied for a notification waiver in respect of its proposed acquisition of the operating rights and equipment for the 'Connetic' fuel retail site operated by Rennic Pty Ltd (Rennic) in Armidale, NSW, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	3 July 2026

Parties to the Acquisition	The acquirer, Freedom Fuels, is a small to medium sized, independent fuel business that operates across the fuel wholesale, fuel distribution and fuel retail markets in Eastern Australia. Freedom Fuels is wholly owned by Idemitsu Kosan Co. Ltd – a Japanese energy company. Together with its sister company Trinity Petroleum Services Pty Ltd, Freedom Fuels operates 54 fuel retail sites in total – 52 in Queensland and two in the Northern Rivers Region of NSW (located in Kingscliff and Terranora). Freedom Fuels also operates a fuel wholesale business in Queensland, NSW and Victoria. The vendor, Rennic, is a small, independent fuel business that has been divesting its fuel retail sites in recent years. Rennic's sole remaining fuel retail site is located in Armidale NSW, which operates under a trademark registered to Rennic ('Connetic'). Freedom Fuels has previously been a wholesale supplier of fuel to the Connetic retail fuel site in Armidale.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no horizontal overlap between Freedom Fuels and the target in the retail supply of fuel in Armidale or the surrounding area b. there are alternative retail suppliers of fuel to customers in Armidale and the surrounding area

	c. there appears to be a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act